

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

6. ASHLYN HIGAREDA V. ISACC HIGAREDA

25FL0250

Respondent filed a Request for Order (RFO), on February 26, 2026, seeking modification of the child custody and parenting plan orders as well as various other parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on March 30, 2026, and a review hearing on May 28, 2026. Proof of Service shows Petitioner was served by mail on February 26th.

Both parties appeared at the CCRC appointment on March 30, 2026. The parties were able to reach several agreements. A report with the parties' agreements as well as further recommendations was filed with the court on May 11, 2026. Copies were mailed to the parties on May 13, 2026.

Petitioner filed a responsive declaration on May 14, 2026. It was served the same day. Petitioner requests the visits be from 10:30 AM until 6:30 PM rather than what is proposed in the CCRC report. Further, Petitioner requests the step-up plan not commence until Respondent has returned from deployment or until it is confirmed he will not deploy. Last Petitioner requests that the visits do not occur until Respondent is no longer residing with his sister.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties to be in the best interest of the minor, with the following modification. Step 1: Respondent's parenting time shall be the 1st and 3rd Saturdays and Sundays from 10:00 AM until 6:30 PM. On the 2nd and 4th weeks of the month Respondent shall have parenting time mid-week on a day agreed to by the parties from 3:00 PM to 6:30 PM. If the parties are unable to agree to a day, Respondent's parenting time shall be on Wednesdays.

The court is adopting the recommendations with the following modifications. Step 2: After Respondent has had parenting time consistently, with no missed or shortened time for the 1st and 3rd weekends in June and July, Respondent shall progress to overnight parenting time. Respondent's parenting time shall continue to be the 1st and 3rd weekend of the month with parenting time from 10:00 AM Saturday to 10:00 AM Sunday. Respondent shall continue to have mid-week parenting time as set forth above.

Step 3: After Respondent has had parenting time consistently, with no missed or shortened parenting time, for overnight for the 1st and 3rd weekends in August and September, Respondent shall progress to weekend parenting time on the 1st and 3rd

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weekend. Respondent's parenting time will start on Saturday at 10:00 AM until Sunday at 6:00 PM. Respondent shall continue to have mid-week parenting time as set forth above.

In the event Respondent is deployed, his parenting time will revert to the prior step for a period of 60 days upon his return from deployment.

The court modifies the prior order regarding Respondent's sister to not be present during Respondent's parenting time to adopt the recommendation that Respondent's sister shall not be left unattended with the minor.

The court notes that the CCRC report does not have recommendations addressing Respondent's request for a holiday schedule or vacation time. The court is reserving on those requests. The court sets a review hearing for October 15, 2026, at 8:30 in Department 5 to address Respondent's progress in the step-up plan as well as to make additional orders on a holiday schedule and vacation time. Pending the review hearing, the court is making the following orders regarding holidays. The court notes that Father's Day, the Fourth of July, and Labor Day are the holidays pending the review hearing. The court notes the holidays coincide with the 1st and 3rd weekends of the month, except for Labor Day. Respondent shall have his regularly scheduled parenting time for Father's Day and the fourth of July. As to Labor Day, that will remain Petitioner's parenting time.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: THE COURT FINDS THE AGREEMENTS OF THE PARTIES TO BE IN THE BEST INTEREST OF THE MINOR, WITH THE FOLLOWING MODIFICATION. STEP 1: RESPONDENT'S PARENTING TIME SHALL BE THE 1ST AND 3RD SATURDAYS AND SUNDAYS FROM 10:00 AM UNTIL 6:30 PM. ON THE 2ND AND 4TH WEEKS OF THE MONTH RESPONDENT SHALL HAVE PARENTING TIME MID-WEEK ON A DAY AGREED TO BY THE PARTIES FROM 3:00 PM TO 6:30 PM. IF THE PARTIES ARE UNABLE TO AGREE TO A DAY, RESPONDENT'S PARENTING TIME SHALL BE ON WEDNESDAYS.

THE COURT IS ADOPTING THE RECOMMENDATIONS WITH THE FOLLOWING MODIFICATIONS. STEP 2: AFTER RESPONDENT HAS HAD PARENTING TIME CONSISTENTLY, WITH NO MISSED OR SHORTENED TIME FOR THE 1ST AND 3RD WEEKENDS IN JUNE AND JULY, RESPONDENT SHALL PROGRESS TO OVERNIGHT PARENTING TIME. RESPONDENT'S PARENTING TIME SHALL CONTINUE TO BE THE 1ST

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AND 3RD WEEKEND OF THE MONTH WITH PARENTING TIME FROM 10:00 AM SATURDAY TO 10:00 AM SUNDAY. RESPONDENT SHALL CONTINUE TO HAVE MID-WEEK PARENTING TIME AS SET FORTH ABOVE.

STEP 3: AFTER RESPONDENT HAS HAD PARENTING TIME CONSISTENTLY, WITH NO MISSED OR SHORTENED PARENTING TIME, FOR OVERNIGHT FOR THE 1ST AND 3RD WEEKENDS IN AUGUST AND SEPTEMBER, RESPONDENT SHALL PROGRESS TO WEEKEND PARENTING TIME ON THE 1ST AND 3RD WEEKEND. RESPONDENT'S PARENTING TIME WILL START ON SATURDAY AT 10:00 AM UNTIL SUNDAY AT 6:00 PM. RESPONDENT SHALL CONTINUE TO HAVE MID-WEEK PARENTING TIME AS SET FORTH ABOVE.

IN THE EVENT RESPONDENT IS DEPLOYED, HIS PARENTING TIME WILL REVERT TO THE PRIOR STEP FOR A PERIOD OF 60 DAYS UPON HIS RETURN FROM DEPLOYMENT.

THE COURT MODIFIES THE PRIOR ORDER REGARDING RESPONDENT'S SISTER TO NOT BE PRESENT DURING RESPONDENT'S PARENTING TIME TO ADOPT THE RECOMMENDATION THAT RESPONDENT'S SISTER SHALL NOT BE LEFT UNATTENDED WITH THE MINOR.

THE COURT NOTES THAT THE CCRC REPORT DOES NOT HAVE RECOMMENDATIONS ADDRESSING RESPONDENT'S REQUEST FOR A HOLIDAY SCHEDULE OR VACATION TIME. THE COURT IS RESERVING ON THOSE REQUESTS. THE COURT SETS A REVIEW HEARING FOR OCTOBER 15, 2026, AT 8:30 IN DEPARTMENT 5 TO ADDRESS RESPONDENT'S PROGRESS IN THE STEP-UP PLAN AS WELL AS TO MAKE ADDITIONAL ORDERS ON A HOLIDAY SCHEDULE AND VACATION TIME. PENDING THE REVIEW HEARING, THE COURT IS MAKING THE FOLLOWING ORDERS REGARDING HOLIDAYS. THE COURT NOTES THAT FATHER'S DAY, THE FOURTH OF JULY, AND LABOR DAY ARE THE HOLIDAYS PENDING THE REVIEW HEARING. THE COURT NOTES THE HOLIDAYS COINCIDE WITH THE 1ST AND 3RD WEEKENDS OF THE MONTH, EXCEPT FOR LABOR DAY. RESPONDENT SHALL HAVE HIS REGULARLY SCHEDULED PARENTING TIME FOR FATHER'S DAY AND THE FOURTH OF JULY. AS TO LABOR DAY, THAT WILL REMAIN PETITIONER'S PARENTING TIME.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY

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UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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7. JOHN HUSSEY V. SHARON ZALEZNIAK

24FL1195

Respondent filed a Request for Order (RFO) on December 15, 2025, seeking spousal support as well as Family Code section 2030 attorney's fees orders. Respondent concurrently filed an Income and Expense Declaration and Declaration of Counsel in support of attorney's fees. Proof of Service shows Petitioner was served electronically on December 17, 2025. However, Petitioner was not served with the Notice of Tentative Ruling or Remote Appearance forms.

On February 27, 2026, parties stipulated to continue the hearing to May 28, 2026, at 8:30 AM in Department 5.

Petitioner filed a Responsive Declaration, Declaration of Brian Boon, Declaration of Respondent, and an Income and Expense Declaration on May 14, 2026. All documents were electronically served on May 14th. Petitioner does not raise the issue regarding the defect in service, as such, the court finds it to have been waived.

On May 20th, Respondent filed and served her Income and Expense Declaration, a Declaration of Dominic Porrino in Support of Respondent's Request for Attorney Fees and Costs, and Respondent's Reply Declaration to Petitioner's Responsive Declaration.

Respondent is seeking \$15,000 a month in temporary support. Respondent is also seeking \$50,000 in Family Code section 2030 attorneys' fees. Petitioner agrees with providing temporary guideline spousal support and has provided a proposed X-Spouse calculation. Petitioner is also in agreement with providing Family Code section 2030 attorney's fees in the amount of \$50,000.

The court has read and considered the filings as outlined above. The court adopts the proposed X-Spouse calculation as set forth in Petitioner's Exhibit 1 to the Responsive Declaration. The court orders Petitioner to pay Respondent \$5,432 as and for temporary guideline spousal support effective June 1, 2026, and payable on the first of each month until further order of the court or termination by operation of law.

Regarding the request for attorney's fees, the public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." In re Marriage of Keech, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to